Galveston County District Court

Cause No. 2024-CV-0035

Victor Gibson, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Defendant's Original Answer

Date:	12-11-24
Counsel for defendant:	Stephanie Williams, Ashford & Lyle LLP

Defendant generally denies each and every allegation contained in Plaintiff's Original Petition and demands strict proof thereof by a preponderance of the evidence, as required by the Texas Rules of Civil Procedure.

Subject to and without waiving the foregoing general denial, Defendant asserts the following affirmative defenses.

First, Plaintiff's own negligence caused or contributed to the collision. Plaintiff entered the intersection against a traffic control device or failed to yield the right-of-way, and under Chapter 33 of the Texas Civil Practice and Remedies Code, any recovery must be reduced by Plaintiff's percentage of responsibility, and barred entirely if that percentage exceeds fifty percent.

Second, the injuries and damages claimed were caused, in whole or in part, by a third party or by a pre-existing or unrelated condition over which Defendant had no control. Defendant is entitled to a proportionate responsibility designation of any such person or entity under Section 33.004 and to a credit for any settlement amounts paid.

Third, Plaintiff failed to mitigate damages by unreasonably delaying medical treatment or failing to follow reasonable medical advice, and any recovery must be reduced accordingly.